



GUIDING AN IMPROVED DEMENTIA EXPERIENCE (GUIDE) PARTNER ORGANIZATION AGREEMENT

THIS GUIDE PARTNER ORGANIZATION AGREEMENT (“**Agreement**”) is made and entered into as of October 13, 2025 (“**Effective Date**”) by and between the Harmonic Medical Groups listed on Schedule 1 (“**Participant**”), and Community Assistance and Transition Care of Houston (CATCH) (“**Partner**”).

WHEREAS, the Centers for Medicare & Medicaid Services (“**CMS**”) Center for Medicare and Medicaid Innovation (“**CMMI**”) has recently launched the Guiding an Improved Dementia Experience Model, a new innovative payment and service delivery model to provide an alternative payment methodology to deliver a broad package of care management and coordination, caregiver education and support, and respite services to Medicare beneficiaries with dementia and their caregivers (“**GUIDE**” or the “**Model**”);

WHEREAS, Participant has been approved as a Participant in the Model, subject to the terms and conditions of a Participation Agreement between CMS and Participant (the “**CMS Agreement**”) as attached hereto as Exhibit A, as may be amended from time to time by CMS and Participant;

WHEREAS, Partner is a provider, supplier or organization willing to participate in GUIDE as a Partner Organization and provide certain GUIDE Care Delivery Services in accordance with the terms of this Agreement and the CMS Agreement;

WHEREAS, Participant and Partner desire to enter into this Agreement to set forth the terms and conditions of their Partner Organization Arrangement.

NOW, THEREFORE, the parties hereby agree as follows:

1. Defined Terms. All terms not otherwise specifically defined herein shall have the meaning set forth in the CMS Agreement.

2. Participation. Partner hereby agrees to participate in GUIDE as a Partner Organization of Participant in compliance with this Agreement and the CMS Agreement. Partner will engage in the GUIDE Care Delivery Services set forth on Exhibit B during the Agreement Performance Period. Partner agrees to engage in at least one GUIDE Care Delivery Service at all times during this Agreement. For the avoidance of doubt, Partner agrees to meet the eligibility requirements under Section 5(a), but does not need to be a Medicare-enrolled provider or supplier to participate as a Partner Organization.

3. Compliance with CMS Agreement, Laws, Regulations, Rules, and Standards. Partner covenants that, at all times during this Agreement, Partner shall, and shall cause its employees, contractors, and agents, to:

(a) comply with all applicable terms of the CMS Agreement, including without limitation:

(i) all applicable terms and conditions governing the performance of the GUIDE Care Delivery Services;

(ii) Beneficiary notifications requirements under Section 5.03 of the CMS Agreement;

(iii) Beneficiary freedom of choice requirements under Section 13.07 of the CMS Agreement;



(iv) all applicable Telehealth Benefit conditions under Article 7 of the CMS Agreement; and

(v) audit and record retention requirements under Article 15 of the CMS Agreement;

(b) comply with all applicable laws, rules, and regulations of the United States, all states in which Partner operates, and any other applicable governmental agency in the performance of services hereunder and the billing for such services, including, but not limited to, federal criminal laws, the False Claims Act, the Federal Anti-Kickback Statute, the Civil Monetary Penalties Law, and the Physician Self-Referral Law; and

(c) notify the Participant within seven (7) days of becoming aware that the Partner is under investigation or has been sanctioned by the government or any licensing authority (including without limitation, the imposition of program exclusion, debarment, civil monetary penalties, corrective action plans, revocation of Medicare billing privileges, and inclusion on the CMS preclusion list as defined at 42 C.F.R. § 422.2).

4. Partner Services. In addition to the GUIDE Care Delivery Services during the Agreement Performance Period set forth on Exhibit B, Partner will provide the additional services set forth on Exhibit C (the “**Additional Services**” and collectively with the GUIDE Care Delivery Services, the “**Services**”). Partner shall provide, and shall ensure its employees and agents provide, all Services to GUIDE Beneficiaries consistent with the appropriate standard of care.

5. Duties of the Partner. Without limiting the generality of Section 3, during the term of this Agreement and after, if required under the CMS Agreement, Partner shall:

(a) meet all applicable eligibility requirements under the CMS Agreement, including: (i) not participating as a GUIDE Practitioner; and (ii) not being precluded from participation in the Model by CMS;

(b) not require that Eligible Beneficiaries be referred only to the Participant’s GUIDE Practitioner(s), Partner Organization(s), or to any other provider or supplier;

(c) not give or receive remuneration in return for, or to induce or reward, any Federal health care program referrals or other Federal health care program business generated outside of the Model;

(d) provide or grant Participant reasonable access to all information and documentation relating to GUIDE and as necessary for Participant to provide CMS with complete and accurate information pertaining to Partner’s and Participant’s participation in the Model, including, but not limited to, financial information, information on organizational readiness and any information required by CMS or Participant to verify, confirm, monitor, or evaluate performance of the services as carried out by Participant and Partner. Partner shall provide Participant with such information in the time and manner specified by Participant, and in no event later than five (5) business days prior to Participant’s deadline for providing such information (or reports or materials compiled from such information) to CMS;

(e) not separately bill for GUIDE Care Delivery Services furnished to GUIDE Beneficiaries or charge GUIDE Beneficiaries a Retainer Fee or Concierge Fee;



(f) implement the GUIDE care delivery approach in accordance with the provisions of Article 6 of the CMS Agreement;

(g) cooperate in any independent evaluation activities or site visits conducted by or on behalf of CMS;

(h) use, any template language for Descriptive Materials and Activities provided by CMS; and

(i) make, Medically Necessary Covered Services available to GUIDE Beneficiaries in accordance with applicable laws, regulations and guidance.

6. Fee Structure. The terms of the financial arrangement by which Partner will participate in the Model for the Initial Term are set forth on Exhibit D (the “**Fee Structure**”). All financial arrangements related to the Model shall comply with the CMS Agreement and the parties agree to amend Exhibit D or enter into a separate agreement(s) to capture requirements imposed by CMS, if required.

7. Medical Judgment; Independence. No provision of this Agreement is intended to create, nor shall be deemed or construed to create, any relationship other than that of independent parties contracting with each other hereunder solely for the purpose of effecting this Agreement. This Agreement shall not be construed to alter Partner’s relationship with its patients or to interfere with each party’s ability to provide services acceptable under current medical standards and make decisions in the best interests of a GUIDE Beneficiary, including the selection of devices, supplies, and treatments used in the care of the GUIDE Beneficiary.

8. Books and Records. Partner further agrees to maintain any books, contracts, records, documents, and other evidence applicable to the Model for a period of at least ten (10) years from the expiration or termination of the CMS Agreement or from the date of completion of any audit, evaluation, inspection, or investigation, whichever is later, unless:

(a) CMS determines there is a special need to retain a particular record or group of records for a longer period and notifies the Participant (and Participant in turn notifies Partner) at least thirty (30) days before the normal disposition date; or

(b) there has been a termination, dispute, or allegation of fraud or similar fault against Participant, Partner, or other individuals or entities performing functions or services related to the Model, in which case the relevant records shall be maintained for an additional six (6) years from the date of any resulting final resolution of the termination, dispute, or allegation of fraud or similar fault.

9. Insurance. Partner, at its expense, will maintain general and professional liability coverage at limits that are appropriate and customary for Partner’s applicable specialty. In no case shall such limits be less than \$250,000 per claim and \$750,000 annual aggregate. Partner will inform Participant of cancellation, nonrenewal or a material change in insurance coverage within ten (10) days of such occurrence.

10. Term and Termination.

(a) Term. The initial term of this Agreement shall commence on the Effective Date and continue until June 30, 2026 (the “**Initial Term**”). Upon expiration of the Initial Term, this Agreement shall automatically renew for consecutive terms equal to six (6) years, unless otherwise terminated by either party as set forth in this Section 10.



(b) Termination by Partner. Partner may terminate this Agreement, with or without cause, by providing Participant with ninety (90) days' prior written notice.

(c) Termination by Participant without Cause. Participant may terminate this Agreement, with or without cause, by providing Partner with ninety (90) days' prior written notice.

(d) Termination by Participant with Cause. Participant may immediately or with advance notice terminate this Agreement, or require Partner to terminate a noncompliant individuals' participation in the Model if one of the following circumstances occurs:

(i) termination of the CMS Agreement;

(ii) reasonable grounds for remedial action against Partner exists, as specified in Article 16 of the CMS Agreement; or

(iii) any event or decision by CMS which requires termination based on the CMS Agreement, including, but not limited to, if CMS rejects the inclusion of Partner as a Partner Organization or CMS requests that Participant terminate Partner's participation in the Model.

11. Close-Out Process. Upon termination or expiration of this Agreement, Partner will complete a close-out process defined by Participant in its Close-Out Policy, which may be amended from time to time, which shall include, without limitation, that Partner furnish all data required by the policy and any data required by CMS to monitor or evaluate the Model to the Participant.

12. Remedial Action. Participant shall be entitled to take remedial action against the Partner Organization (including without limitation the imposition of a corrective action plan, denial of any payments, and termination of the Partner Organization Arrangement with the Partner Organization) to address noncompliance with the applicable terms of this Agreement.

13. Fees; Repayment Obligations. All fees and other repayment amounts due under this Agreement (collectively, the "**Amounts Owed**") shall be due within thirty (30) days of Participant's notice to Partner of the Amounts Owed. Late payments shall bear interest at the lesser of the rate of one percent (1%) per month or the highest rate permissible under applicable law, calculated daily and compounded monthly. Partner shall also reimburse Participant for all reasonable costs incurred in collecting any late payments, including, without limitation, attorneys' fees. In the event Participant is required to refund any amounts already distributed pursuant to this Agreement, Partner shall reimburse Participant for such amounts.

14. Confidentiality.

(a) Each party may have access to information that is confidential to the other party. As used herein, "**Confidential Information**" means all confidential and proprietary information of a party ("**Disclosing Party**") disclosed to the other party ("**Receiving Party**"), whether orally or in writing, that is clearly identified as confidential as well as any information that, based on the circumstances under which it was disclosed, a reasonable person would believe to be confidential, including but not limited to the terms and conditions of this Agreement, the Partner Data and Software Services, business and marketing plans, technology and technical information, product designs, trade secrets and business processes. A party's Confidential Information shall not include information that (i) is or becomes a part of the public domain through no act or omission of the other party; (ii) was in the other party's lawful possession prior to the disclosure and had not been obtained by the other party either directly or indirectly from the Disclosing Party; (iii) is lawfully disclosed to the other party by a third party without



restriction on disclosure; (iv) is independently developed by the other party without use of or reference to the other party's Confidential Information. The Parties agree to use all reasonable care to prevent disclosure of the other party's Confidential Information to any third party. Notwithstanding the foregoing, Partner acknowledges and agrees that Participant may disclose Partner's Confidential Information to its employees, consultants and other third-party providers to the extent necessary to provide the services under this Agreement, provided that Participant has a non-disclosure agreement in place with such third party provider that protects such Confidential Information against disclosure in a manner no less protective than this Agreement. This Section 14 constitutes the entire understanding of the parties and supersedes all prior or contemporaneous agreements, representations or negotiations, whether oral or written, with respect to Confidential Information.

(b) If Receiving Party is compelled by law or legal process to disclose Confidential Information of Disclosing Party, it shall provide Disclosing Party with prompt prior notice of such compelled disclosure (to the extent legally permitted) and reasonable assistance, at Disclosing Party's expense, if Disclosing Party wishes to contest the disclosure.

(c) If Receiving Party discloses (or threatens to disclose) any Confidential Information of Disclosing Party in breach of this Section 14, Disclosing Party shall have the right, in addition to any other remedies available to it, to seek injunctive relief to enjoin such acts, it being acknowledged by the parties that any other available remedies may be inadequate.

(d) Upon any termination of this Agreement, the Receiving Party shall continue to maintain the confidentiality of the Disclosing Party's Confidential Information for five (5) years and, upon request, return to the Disclosing Party or destroy (at the Disclosing Party's election) all materials containing such Confidential Information.

(e) The terms and conditions of this Agreement, including all exhibits hereto, are confidential and are not to be disclosed by Partner or Participant or any of their respective shareholders, owners, employees, officers, directors, representatives or agents (including without limitation the Participating Practitioner) to anyone except as specifically provided for herein. Notwithstanding the foregoing, the parties may share this information with their respective legal and financial advisors and other consultants (collectively, "**Advisors**") solely for the purpose of reviewing and complying with the Model, this Agreement or the Care Redesign, provided the party disclosing such confidential information makes its Advisors aware of the confidentiality obligations hereunder and takes all reasonable efforts to make sure such Advisors adhere to such obligations.

15. Indemnification. Each party will indemnify and hold harmless the other party, and its directors, officers, employees, agents, representatives, successors and assigns, against all actions, claims, demands, liabilities, losses, damages, costs and expenses, including reasonable attorney fees (collectively, "**Losses**"), to the extent resulting out of an actual or alleged injury to a person or to property as a result of the gross negligence, willful misconduct or deliberate ignorance of the indemnifying party in connection with that party's obligations under this Agreement, except to the extent any such action, claim, demand, liability, losses, damages, cost or expense was caused by the negligence or willful misconduct of or the breach of obligations of this Agreement by the party claiming indemnification hereunder, or its directors, officers, employees, agents, representatives, assigns or successors. The provisions of this Section will survive the termination of the Agreement with respect to any claim, action, or proceeding relating to actions or omissions alleged to have occurred during the term of this Agreement.



16. HIPAA. The parties agree to maintain the privacy and security of any individually identifiable patient health information received from or created for the other party in accordance with the CMS Agreement and all relevant state and federal laws and regulations, including, but not limited to, the privacy and security standards of the Health Insurance Portability and Accountability Act of 1996 set forth at 45 CFR parts 160, 162 and 164 (collectively “HIPAA”), and agree to take such actions as are necessary and appropriate in connection therewith, including, if applicable, executing a Business Associate Agreement.

17. Further Assurances. Partner shall, as necessary, execute and deliver such additional documents, instruments, conveyances, and assurances and take such further actions as may be required by CMS in connection with the Model or as reasonably requested by Participant to carry out the terms of this Agreement.

18. Notices. All notices shall be deemed received on the day personally delivered, or on the second day after mailing, certified or registered, return receipt requested, to the following addresses, or to such other addresses as the parties shall respectively by notice designate:

Participant: Harmonic Health Medical Groups
c/o Harmonic Health, Inc.
119 S. Main Street
St. Charles, MO 63301

Partner: Community Assistance and Transition Care of Houston (CATCH)
170 Heights Blvd.
Houston, TX 77007

19. Waiver. The waiver by either party to this Agreement of any of its provisions shall not operate as a waiver of any other provision of this Agreement or any Exhibit hereto.

20. Severability. If any provision of this Agreement is held to be unenforceable by a court of competent jurisdiction, the remaining provisions of this Agreement shall remain in effect and construed in a manner as to give effect to the original intent of Partner and Participant to the greatest extent possible.

21. Assignment. This Agreement may not be assigned, delegated or transferred by either party without the written consent of the other party. Any attempted transfer or assignment without such written consent shall be void.

22. Governing Law; Interpretation. This Agreement shall be governed in all respects by the laws of the State of Delaware (without giving effect to its conflict of laws provisions) and interpreted in all respects in a manner consistent with the CMS Agreement and the Model, as its terms may be modified or interpreted in the future by CMS. Participant reserves the right to treat CMS guidance regarding the Model as binding on the parties hereto.

23. Entire Agreement. This Agreement, the CMS Agreement, and the Exhibits attached hereto constitute the entire understanding between Participant and Partner with respect to the subject matter hereof.

24. Counterparts. This Agreement may be executed in any number of counterparts, each of which shall be an original, but all of which, together, shall constitute one and the same agreement.



25. Survival. Any provision of this Agreement that requires or reasonably contemplates the performance or existence of obligations of a party after expiration or termination of this Agreement, or survives per the terms of the CMS Agreement, shall survive such termination or expiration.

**Certification**

By signing below, Partner acknowledges that it has received a copy of the CMS Agreement, which governs participation in GUIDE, and Partner agrees to abide by all applicable terms and conditions therein, including but not limited to those specified as obligations Participant (as Participant) is required to pass through to Partner (as a Partner Organization). Partner further acknowledges that it understands that GUIDE is administered by CMS, and that CMS may impose additional requirements and/or provide new instructions that both Participant and Partner will be required to follow, and Partner agrees to follow such requirements and instructions.

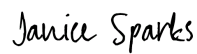
IN WITNESS WHEREOF, Participant and Partner hereby execute this Agreement as of the Effective Date.

PARTICIPANT:

HARMONIC HEALTH, INC., on behalf of the Harmonic Medical Groups listed on Schedule 1

By: 
Name: James T. Gera
Its: CEO
Dated: 12/10/2025

PARTNER:

By: 
Name: Janice Sparks
Its: Executive Director
Dated: 12/10/2025



SCHEDULE 1

HARMONIC MEDICAL GROUPS

1. Harmonic Medical Group of Delaware, P.A.
2. Harmonic Medical Group of Illinois, S.C.
3. Harmonic Medical Group of Minnesota, P.C.
4. Harmonic Medical Group of Texas, P.C.
5. Harmonic Health Medical Group, P.A.
6. Harmonic Medical Group of Arizona, P.C.
7. Harmonic Medical Group of Kentucky, P.S.C.
8. Harmonic Medical Group of Iowa, P.C.
9. Harmonic Medical Group of Nevada - Mohseni, P.C.
10. Harmonic Medical Group of Tennessee, P.C.
11. Harmonic Medical Group of Louisiana, Professional Corporation
12. Harmonic Medical Group of New Jersey, P.C.
13. Harmonic Medical Group of North Carolina, P.C.
14. Harmonic Medical Group of Southern California, P.C.
15. Harmonic Medical Group of Michigan, P.C.
16. Harmonic Medical Group of Massachusetts, P.C.
17. Harmonic Medical Group of Indiana, P.C.
18. Harmonic Medical of New York, P.C.



EXHIBIT A

CMS Agreement (Informational Only)

This CMS Agreement is between the Centers for Medicare & Medicaid Services (CMS) and Harmonic Health. It is not an agreement with the Partner and is provided solely for the Partner's informational purposes under separate cover.



EXHIBIT B

GUIDE CARE DELIVERY SERVICES

Tier 1 – DCN Plus (Partner)

- **Patient Population Identification.** Partner will identify eligible patients & provide information via CSV, or other mutually agreed upon method of transmission, appropriate patient identifiers for Participant to determine patient eligibility.
- **Patient Engagement, Outreach & Scheduling.** Partner will contact the patients eligible for the GUIDE model to educate on the GUIDE model, if not already done so, and schedule initial care navigator screening(s) to gather consents and appropriate assessments.
- **Care Navigator Screening.** Care Navigator to complete some GUIDE assessments that can inform additional assessments and are mutually agreed upon by both parties.
- **Scheduling of Intakes.** Contact GUIDE eligible patients that they are accepted into the GUIDE model and confirm patient would like to participate. Schedule care navigator and nurse practitioner Intake Visits.
- **Conduct Care Navigator Care Coordination/Management Visit.** Partner Care Navigator to review completed assessments regularly to determine whether the need has been met or if additional resources are needed and initiate referrals and/or connections to community-based resources, identification of specialists, coordination with specialists, and transitions of care; facilitate a check-in with the patient and non-paid caregiver; follow established protocols with Participant if patient refuses or patient/non-paid caregiver is unable to be reached; inquire with patient or non-paid caregiver about any changes in symptoms; inquire about non-paid caregiver stress & where support can be provided; provide resources to meet gaps identified in the care plan; assess for paid caregiver respite needs & refer to Participant for referral to preferred respite provider.



EXHIBIT C
ADDITIONAL SERVICES

**EXHIBIT D****FEE STRUCTURE**

As consideration for the Services provided by Partner under this Agreement, Participant shall pay Partner the established dementia care management payment (“DCMP”) amount equal to the tier of care delivery services provided at:

Tier 1 – DCN Plus

- 20% of the DCMP for GUIDE Beneficiaries assigned to Partner for the Services.
- \$100.00 for any Home Safety Assessment completed.